

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 11, 2026

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in City Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Dr. Kathy Emmons, Ken Esquibel, Pete Laybourn, Mark Moody, Dr. Mark Rinne, Jeff White and Lawrence Wolfe. Absent: Tom Segrave. Also present: Kylie Soden, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Upon request by Dr. Emmons, and pursuant to support received by Dr. Aldrich and Mr. White, item #31(a) was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Moody, item #30(a) was removed from the Consent Agenda. Mr. Esquibel moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on April 27, 2026. Motion (per Consent Agenda) carried.

Public Hearing was held for a microbrewery permit application filed with the City Clerk’s Office for Jagerhund Brewing, LLC d/b/a Jagerhund Brewing, 3521 E. Lincolnway, Cheyenne, WY. Public comment was made by: Fred Hirsch, Jagerhund Brewing. Comments were made by the following members of the governing body: Mayor Collins and Mr. Esquibel. There being no further comments or input and the purpose of the public hearing having been met, Mayor Collins closed the public hearing and referred the application to the Finance Committee.

ORDINANCE – 3rd READING – Amending Section 13.20.050, General Prohibitions, and Section 13.20.070, Local Limits, of Chapter 13.20 Wastewater Treatment and Disposal, of the Code of the City of Cheyenne, Wyoming, to revise local discharge limits and related provisions in compliance with NPDES and WPDES permit requirements. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Dr. Aldrich. Dr. Rinne moved to postpone to May 26, 2026, seconded by Dr. Aldrich. Motion to postpone carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne, changing the zoning classification for land located south of I-80, east of Southwest Drive from County LI Light Industrial, AG Agricultural, and AR Agricultural Residential to LI Light Industrial. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Wolfe.

Motion carried. Voting “yes” – all members of the governing body present. Public comments were made by: John Niles and John Sayers, agent and applicant. (#4670)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.2 Planned Development – Regulating Plan or Development Master Plan and Section 5.6.2 PUD – Planned Unit Development District of the Unified Development Code, amending Ordinance No. 4524 by modifying certain standards of the adopted district, Planned Unit Development (PUD), for Sweetgrass (located southeast of the intersection of College Drive and Avenue C). Dr. Rinne advised there was no recommendation from Public Services Committee. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Wolfe. Motion carried. Voting “yes” – all members of the governing body present. Public comments were made by: Casey Palma, Palma Land Planning, Charles Miller and Jim Chiro. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons, Dr. Rinne, Mr. White and Mr. Wolfe. (#4671)

ORDINANCE – 2nd READING – Amending enforcement and permitting requirements related to Oversized Vehicles and making conforming amendments. Reporting for Finance Committee, Mr. Esquibel moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn and Mr. Moody voting “no”.

ORDINANCE – 1st READING – Amending and updating the Solid Waste Fee Schedule in accordance with Section 8.44.010 of the Municipal Code of the City of Cheyenne, Wyoming, and repealing Ordinance No. 4621 – referred to Finance Committee. (Sponsor – Mr. Esquibel)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne, changing the zoning classification for land located southwest of the intersection of HR Ranch Road and Judy Lee Drive, and southeast of HR Ranch Road and Judy Lee Drive, from JL Ranch PUD – Planned Unit Development to NR-2 Neighborhood Residential – Medium Density – referred to Public Services Committee. (Sponsor – Dr. Emmons)

ORDINANCE – 1st READING – Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the Municipal Government of said city and fixing the amount of General and Special Taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2026, and ending June 30, 2027 – referred to Committee of the Whole. (Sponsor – Mr. Segrave)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne, changing the zoning classification for land located in Cheyenne Business Park and Campstool Business Park in eastern Cheyenne along I-80 from LI – Light Industrial, HI – Heavy Industrial, and CB – Community Business to BP – Business Park – referred to Public Services Committee. (Sponsor – Dr. Emmons)

ORDINANCE – 1st READING – Approving and establishing revised Water and Sewer Rates, Tap and System Development Fees, Administrative Fees, Service Charges and Penalties, and Septic and Commercial Waste Dump Rates, as recommended by the Board of Public Utilities – referred to Finance Committee. (Sponsor – Mr. Esquibel)

ORDINANCE – 1st READING – Imposing a temporary twelve (12) month moratorium on the establishment, construction, or conversion of any buildings or structures for use as a data center, including any change of use to a data center – referred to Public Services Committee. (Sponsor – Mr. Moody)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2026 Budget of the City of Cheyenne in accordance with the provisions of W.S. §§ 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6530)

RESOLUTION – Amending the Future Land Use Map of PlanCheyenne changing the land use designation from Urban Transition Residential to Mixed-Use Employment for property generally located west of Roundtop Road and adjacent to Happy Jack Road and amending the Urban Service Boundary. Dr. Rinne moved to adopt, seconded by Mr. Wolfe. Dr. Rinne moved to refer the resolution to the Public Services Committee, and the committee be instructed to report at the September 28, 2026 council meeting, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Michael White.

[CA] RESOLUTION – Appropriating excess funds from the November 2, 2021, One Percent (1%) Specific Purpose Sales and Use Tax for the acquisition of real property. Motion (per Consent Agenda) carried. (#6531)

[CA] RESOLUTION – Adopting the Title VI Program for the Cheyenne Transit Program for the City of Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#6532)

[CA] RESOLUTION – Expressing the support of the Governing Body for the submission of an application by the Cheyenne Transit Program to the Wyoming Department of Transportation for grant funding under the Wyoming Rural Public Transportation Grant. Motion (per Consent Agenda) carried. (#6533)

RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the fiscal year beginning July 1, 2026 and ending June 30, 2027. Mr. Esquibel moved to adopt, seconded by Mr. White. Mr. Esquibel moved to amend by substitute dated May 5, 2026, seconded by Mr. White. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. Public comments were made by: Dave Teubner, Downtown Development Authority President and Charles Miller. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Laybourn, Dr. Rinne and Mr. Wolfe. (#6534)

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the Fiscal Year beginning July 1, 2026, and ending June 30, 2027 – referred to Finance Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in its application for, and acceptance of, federal assistance from the Federal Aviation Administration under the Bipartisan Infrastructure Act to assist in the reconstruction of General Aviation Apron and Taxiway A1 at the Cheyenne Regional Airport – referred to Finance Committee. (Sponsors – Mr. Esquibel, Dr. Rinne and Mr. Segrave)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in its application for, and acceptance of, federal assistance from the Federal Aviation Administration under the Airport Improvement Program to assist in the reconstruction of the General Aviation (GA) Apron and Taxiway A1 at the Cheyenne Regional Airport – referred to Finance Committee. (Sponsors – Mr. Esquibel, Dr. Rinne and Mr. Segrave)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Polo Properties, City of Cheyenne, Laramie County, Wyoming, located south of E 12th Street, east of Crest Park Drive, and west of Cottonwood Drive – referred to Public Services Committee. (Sponsor – Dr. Emmons)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Darnell Homesite 2nd Filing, City of Cheyenne, Laramie County, Wyoming, located west of Ridge Road and east of Darnell Place – referred to Public Services Committee. (Sponsor – Dr. Emmons)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Harmony Valley, 23rd Filing, City of Cheyenne, Laramie County, Wyoming (located south of West Allison Road, west of Walterscheid Boulevard and north of West College Drive) – referred to Public Services Committee. (Sponsor – Dr. Emmons)

Contract between the City of Cheyenne and BNSF Railway for a BNSF Railway and Grant Applicant 22905 Agreement for the Reed Avenue Rail Crossing Elimination Project (2017 Specific Purpose Option Tax Fund). Mr. Esquibel moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Moody voting “no”. During comments made by Charles Miller, Mr. Moody and Mr. White raised points of order that comments were off subject. Public comment was made by: Charles Miller. Comments were made by the following members of the governing body: Mayor Collins, Dr. Emmons, Mr. Laybourn, Dr. Rinne and Mr. White.

[CA] Professional Services Agreement between the City of Cheyenne and Sunrise Engineering, LLC for the Yellowstone Road and Dell Range Boulevard Rehabilitation and Traffic Improvements Project (2015-2018 Optional 1% Sales Tax Fund) – referred to Finance Committee.

Contract Modification #1 to Contract #8218 between the City of Cheyenne and AVI Engineering, PC for On-Call Engineering Services (2023-2026 Optional 1% Sales Tax Fund). Dr. Rinne declared a conflict of interest and vacated council chambers. Mr. Esquibel moved to approve in an amount of \$25,000.00, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present in council chambers with the exception of Mr. Laybourn voting “no”. Public comment was made by Charles Miller. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons, Mr. Laybourn, Mr. Moody and Mr. Wolfe. Following announcement of the vote, Dr. Rinne returned to council chambers. (#8218)

Following a brief recess, Mayor Collins reconvened the meeting at 7:50 p.m.

Consideration of Bid #S-19-26 for a Contract between the City of Cheyenne and Reiman Corp. for the Storey Boulevard Extension Construction project (2019-2022 Optional 1% Sales Tax Fund). Mr. Esquibel moved to accept the bid in an amount not to exceed \$3,493,630.85, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. During comments made by Mayor Collins, Dr. Rinne raised a Point of Order, stating that if he was taking a position on the matter, he should relinquish the chair. Public comments were made by: Troy Thompson, Laramie County Commissioner, Michael White, Charles Miller, Rodney Stone and Mike Chavez. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons, Mr. Esquibel, Mr. White and Mr. Wolfe. (#8349)

[CA] Consideration of Bid #S-21-26 for a Contract between the City of Cheyenne and Construction Specialists, Inc. for the Cheyenne Transit Facility - Interior and Exterior Renovations and Upgrades project (Board of Public Utilities and Federal Transit Administration & WYDOT Grants). Motion (per Consent Agenda) carried (in an amount not to exceed \$2,169,500.00). (#8350)

[CA] Consideration to Purchase between the City of Cheyenne and Shannon Chastain Enterprises, Inc. d/b/a Basic Equipment, for the purchase of a 240VT Split Drum Vibratory Roller with Tow Package for the Street & Alley Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-19-26 for furnishing One (1) new 2026 or newer 3/4 Ton, Crew Cab, Full Size Pickup Truck, 4x4, with a 8-Foot Box and a Fleet Work Truck Package for the Traffic Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-20-26 for furnishing One (1) new 2026 or newer 1 Ton Dual Rear Wheels, 4-Door Cab, Full Size Pickup Truck, 4x4, with a 9-Foot Utility Box with Crane Support and a Fleet Work Truck Package for the Street and Alley Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-21-26 for furnishing Three (3) new 2026 or newer 1/2 Ton, Regular Cab, Full Size Pickup Truck, 4x4, with a 6’ 4” Box and a Fleet Work Truck Package for the Animal Control Division (2023-2026 Optional 1% Sales Tax Fund & General Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-22-26 for furnishing One Fire Rescue Type 6 Wildland / Brush Fire Apparatus for the Cheyenne Fire Rescue Department (SLIB Mineral Royalty Grant) – referred to Finance Committee.

[CA] Consideration of Bid #E-24-26 for furnishing One (1) new 2026 or newer 1/2 Ton, Crew Cab, Full Size Pickup Truck, 4x4, with a 6’ 4” Box and a Fleet Work Truck Package for the Landfill Division (Solid Waste Fund) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Announcement was made that due to the Memorial Day holiday and City offices being closed on Monday, May 25, 2026, the regularly scheduled City Council meeting will instead be held on Tuesday, May 26, 2026 at 6:00 p.m. in the Municipal Building, City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY.

Public comments were made by the following under Other Business: Charles Miller.

The following members of the governing body made comments under Other Business: Dr. Aldrich, Dr. Emmons, Mr. Moody, Dr. Rinne, Mr. White and Mr. Wolfe.

Mr. Laybourn moved to meet in Executive Session pursuant to Wyoming Statute §16-4-405(a)(x) seconded by Mr. Moody. Motion carried. Voting "yes" – all members of the governing body present. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: Amber Ash, Mayor's Chief of Staff; John Brodie, City Attorney; Robin Lockman, City Treasurer; Kylie Soden, City Clerk and Chief Andrew Dykshorn, Cheyenne Fire Rescue.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:48 p.m.

Submitted by,

Kylie Soden,
City Clerk

This notice is available in alternative, accessible formats upon request.

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